

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #1	CCRB Case #: 201706417	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/02/2017 6:32 PM, Tuesday, 07/25/2017	Location of Incident: In front of 228 West 231st Street	Precinct: 50	18 Mo. SOL 12/2/2018	EO SOL 12/2/2018	
Date/Time CV Reported Sun, 08/06/2017 5:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/06/2017 5:05 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Mayko Matos	13660	957821	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Planamenta	820	957042	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Mayko Matos	Abuse: Police Officer Mayko Matos searched the vehicle in which § 87(2)(b) was an occupant.	[REDACTED]

Case Summary

On August 6, 2017, § 87(2)(b) filed this complaint online with the CCRB.

On June 2, 2017, at approximately 6:32 p.m., § 87(2)(b) was with his friend, § 87(2)(b) outside of 228 West 231st Street, in the Bronx. § 87(2)(b) was going to his car, which was parked at the location, and had run into § 87(2)(b) a friend of his, on the street. An individual in the area, § 87(2)(b) recognized § 87(2)(b) as someone who had robbed him several weeks prior, and flagged down two police officers who were in the area as well: PO Mayko Matos and PO Richard Planamenta, both assigned to the 50th Precinct. PO Matos and PO Planamenta approached the two men. The officers arrested § 87(2)(b) and then PO Matos allegedly opened the door to § 87(2)(b)'s car and seated § 87(2)(b) inside (**Allegation A**). They arrested § 87(2)(b) on charges related to the open complaint, and arrested § 87(2)(b) for § 87(2)(b), which they allegedly found on § 87(2)(b) after placing him in § 87(2)(b)'s car. They were all taken to the 50th Precinct stationhouse, along with § 87(2)(b)'s car. Several hours later, § 87(2)(b) told the officers that the marijuana they found belonged to him, and so they voided the arrest of § 87(2)(b) and released him from custody.

There was no video footage of the incident available.

Mediation, Civil and Criminal Histories

- Due to the arrest of § 87(2)(b) this case was not suitable for mediation.
- No Notice of Claim related to this incident has been filed with the New York City Comptroller's Office as of November 13, 2017 (Board Review 01).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(g).
- PO Matos has been the subject of 16 prior and subsequent CCRB allegations across five other cases during his two year tenure with the NYPD. One of these concerned a search of a person, and it was exonerated; § 87(2)(g).
- Additionally, PO Matos has been the subject of one substantiated CCRB allegation (Board Review 04):
 - In case 201610050, PO Matos was found to have conducted an improper strip search of an individual. A command discipline was recommended by the CCRB, and the NYPD has yet to take any disciplinary action with regards to the case.

Potential Issues

- Although the investigation identified two witnesses, § 87(2)(b) and § 87(2)(b) neither of them provided statements to the CCRB. § 87(2)(b) could not be reached by the CCRB, despite attempting to contact him numerous times via contact information provided in the UF-61 related to his complaint against § 87(2)(b) as well any contact information that could be located in public records and the CTS database. § 87(2)(b) was contacted first on August 25, 2017, but was unable to provide a statement at the time and did not respond to subsequent phone calls and letters.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation A – Abuse of Authority: Police Officer Mayko Matos searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that officers searched § 87(2)(b)'s car, § 87(2)(g) § 87(2)(b) (Board Review 05) stated that PO Matos and PO Planamenta approached him and § 87(2)(b) after § 87(2)(b) was pointed out by a robbery victim as the perpetrator of a crime that had occurred in the past. After they stopped § 87(2)(b) PO Matos opened the front passenger side door of § 87(2)(b)'s car, which § 87(2)(b) and § 87(2)(b) were standing next to when the officers approached, and sat § 87(2)(b) down on the seat. PO Matos then searched § 87(2)(b) and found a cigarette box on him that had marijuana inside it. Shortly after that, PO Matos approached § 87(2)(b) and placed him under arrest.

PO Matos (Board Review 06) stated that when he first approached § 87(2)(b) and § 87(2)(b) with the intention of investigating the robbery allegations being made against § 87(2)(b) § 87(2)(b) was in the front passenger seat of § 87(2)(b)'s car with the door open and his legs hanging outside of the car.

When PO Matos approached, he immediately noticed the strong odor of marijuana emanating from the vehicle, and then he noticed a marijuana cigarette in an open cigarette box in the center console area of the car. PO Matos could not recall exactly where he saw the marijuana, or how he recognized it as marijuana, but recalled that it was in plain view. § 87(2)(g), § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

At some point, the officers determined that the vehicle belonged to § 87(2)(b) and so they decided to charge him with § 87(2)(b). § 87(2)(b)'s vehicle was taken in to police custody and driven to the stationhouse after § 87(2)(b)'s arrest. It was released to § 87(2)(b) when he was released. PO Matos never conducted a search of the vehicle beyond obtaining the marijuana in plain view, and was not aware of other officers doing so.

PO Planamenta § 87(2)(g)

§ 87(2)(b) could not recall many details from the incident. He could not recall why § 87(2)(b) was arrested, or whether a car was searched.

If an officer observes a controlled substance in plain view inside a vehicle prior to entering it, they are justified in searching the vehicle for contraband (United States v Dixon, 2010 US Dist. LEXIS 80463) (Board Review 11).

§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g).

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date